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Ethics and Laws for Data Science

Ethical A.I. Framework

In the AI era, technological innovation provides a convenient life with plenty of benefits. However, the AI industry also brings ethical and legal issues and has been a rising concern recently. We need to use of ethical framework in order to avoid potential misuse. The Ethical A.I. framework I designed for best practices is based on the “UK Data Ethics Framework” and combined with the “EU AI Act: Risk-Based Approach”. “UK Data Ethics Framework” includes 3 main principles Transparency, Accountability, and Fairness which cover the basic ethical considerations, address these within the AI projects, and encourage responsible innovation. (GOV.UK, 2020) Moreover, the risk or the situation that is difficult to cover by the “UK Data Ethics Framework” 3 principles such as economic inequalities, addiction dopamine economy, and data control that we need to use “EU AI Act: Risk-Based Approach” to cover. (EU Artificial Intelligence Act, 2024, June 13)

The detail of the best practice of Ethical AI framework. The transparency guiding principle is every step of the model must be tracked and can be reviewed. Transparency should be available for those who are impacted by the model. Accountability’s guiding principle is the ability to explain why the model is acting how it does and to take accountability for the result the AI model created. Fairness’s guiding principle focuses on preventing discriminatory effects on individuals or groups. Efforts should be made to mitigate bias, ensure justice, uphold human dignity, and align with human rights and democratic values. (GOV.UK, 2020)

EU AI Act: risk-based approaches are separate AI to “Prohibited AI”, “High-Risk AI”, “Limited Risk AI” and, “Minimal or No Risk AI” which can lead AI systems that pose serious threats to fundamental rights and social values to be completely banned.

Applied the Ethical AI Framework to the recruitment industry, according to the news from BBC, “many leaders across the corporate world hoped AI recruiting tech would end biases in the hiring process. Yet in some cases, the opposite is happening. Some experts say these tools are inaccurately screening some of the most qualified job applicants – and concerns are growing the software may be excising the best candidates.” (Lyttton, C., 2024) While this may increase efficiency, it also raises ethical concerns related to bias, transparency, and accountability. The problem is that no-one knows exactly where the harm is and candidates rarely ever know if these tools are the sole reason companies reject them (Lyttton, C., 2024) which the AI model didn’t fit the transparency requirement, AI screening models should not be black-box systems, as job applicants and HR professionals need to understand how candidates are evaluated. Furthermore, “In one case, one user who'd been screened out submitted the same application but tweaked the birthdate to make themselves younger. With this change, they landed an interview. At another company, an AI resume screener had been trained on the CVs of employees already at the firm, giving people extra marks if they listed "baseball" or "basketball" – hobbies that were linked to more successful staff, often men. Those who mentioned "softball" – typically women – were downgraded.”(Lyttton, C., 2024) This case shows that this AI model has bias and loses fairness. AI hiring models trained on biased historical data can unintentionally discriminate against certain groups. So, according to the requirement, this AI model needs to be banned until the problem meets the requirements of the framework.

References:

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